

TENTATIVE RULING(S) FOR JULY 17, 2026

Department S37 – Judge Winston Keh

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You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2528298

Gastelum vs Trustees of the California State University

TENTATIVE RULING(S):

Before the Court is Defendant The Trustees of the California State University's ("Defendant") Demurrer and Motion to Strike, as well as a Request for Judicial Notice and the Declaration of Counsel. Plaintiff filed an Opposition to the Demurrer and Motion to Strike. Defendant replied.

Discussion

Request for Judicial Notice. Defendant requests the Court take judicial notice of the following: 1)

Exhibit F – "Thesis/Project/Dissertation Committee Policy and Guidelines" approved on June 1, 2020, by Graduate Council, located at:

[https://www.csusb.edu/sites/default/files/Thesis%20Committee%20Policy_Guidance_9_17_20.p](https://www.csusb.edu/sites/default/files/Thesis%20Committee%20Policy_Guidance_9_17_20.pdf)
[df](#); 2) Exhibit G – "Master of Science in Computer Science" 2024-25 Catalog, located at

<https://catalog.csusb.edu/archive/2024-25/colleges-schools-departments/naturalsciences/>

computer-science-engineering/computer-science-ms/; and 3) Exhibit H – “Academic Calendar Fall Term 2024” 2024-25 Catalog located at <https://catalog.csusb.edu/archive/2024-25/calendar/>.

Defendant requests judicial notice pursuant to Evidence Code section 452, subdivision (h) on the grounds the Exhibits are not reasonably subject to dispute. Defendant argues they are not subject to dispute because they are cited in the FAC and they are relevant to show that the basis of the lawsuit is Defendant’s alleged failure to follow its own policies, rather than any statute or rules.

The Court GRANTS the requests for judicial notice.

Analysis. Defendant generally and specially demurs to the entire complaint and/or each cause of action on the grounds the pleading is uncertain because all causes of action are vague, not properly pleaded, and that the pleading does not state facts sufficient to constitute a cause of action because all causes of action are barred by the Government Claims Act’s notice of claim requirements, sovereign immunity, and lack the necessary statutory basis to impose liability.

The Government Claims Act-Statute of Limitations. “The Tort Claims Act requires any civil complaint for money or damages first be presented to and rejected by the pertinent public entity (Gov. Code, §§ 910, 912.4, 912.8, 945.4).” (*Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1776.) “Government Code section 911.2 requires the claim relating to a cause of action for death or for injury to person or to personal property be presented not later than six months after the accrual of the cause of action.” (*Ibid.*)

““Generally speaking, a cause of action accrues at ‘the time when the cause of action is complete with all of its elements.’” “““Ordinarily this is when the wrongful act is done and the obligation or the liability arises, but it does not “accrue until the party owning it is entitled to begin and prosecute an action thereon.”” ... In other words, ‘[a] cause of action accrues “upon the occurrence of the last *element essential to the cause of action*.”’”””” (*Choi v. Sagemark Consulting* (2017) 18 Cal.App.5th 308, 323, emphasis in the original, citations omitted.)

Here, Defendant argues that the FAC alleges the negligent acts and omissions began in August 2020. (FAC ¶ 9.) It claims the causes of action accrued at the end of 2020 and a claim is not

alleged to have been submitted until May 2, 2025. (*Ibid.*) Thus, it argues the statute of limitations expired.

This reading of the FAC is too cursory. There are a number of allegations for which accrual was not complete by the end of 2020 and there are allegations such that the damages would have been ongoing, which Defendant does not account for. For example, there are allegations of harm occurring up and until May 2025, when Plaintiff's degree was finally conferred. (FAC ¶ 9.) These "cumulative failures" are the alleged basis of Plaintiff's harm. (¶ 11.)

In challenging a cause of action is time-barred based on the pleading, the running of the statute must appear clearly and affirmatively from the dates alleged; it is not enough that the complaint might be barred. (*Committee for Green Foothills v. Santa Clara County Bd. Of Supervisors* (2010) 48 Cal.4th 32, 42; *Marshall v. Gibson, Dunn & Crutcher* (1995) 37 Cal.App.4th 1397, 1403.) Furthermore, resolving a statute of limitation question is generally a question of fact. (*Brewer v. Remington* (2020) 46 Cal.App.5th 14, 28.) Here, while some claims may have been time-barred, it is not clear from the face of the complaint that all allegations are in fact time-barred. Therefore, this argument is not persuasive.

Section 815 Immunity. As Defendant is a public entity, "its liability, if any, cannot arise out of the common law. 'Except as otherwise provided by statute,' a public entity 'is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.'" (Gov. Code, § 815, subd. (3).) This statute...abolished all common law or judicially declared forms of liability. The law's clear purpose was 'not to expand the rights of plaintiffs in suits against governmental entities, but to confine potential governmental liability to rigidly delineated circumstances.'" (*Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1127; See also *Ellerbe v. County of Los Angeles* (2010) 187 Cal.App.4th 1206, 1214.) Accordingly, "all governmental tort liability is dependent on the existence of an authorizing statute or 'enactment.'" (*Searcy v. Hemet Unified High Sch. Dist.* (1986) 177 Cal.App.3d 792, 802, citing Gov. Code, §§ 815 subd. (a) and 815.6.)

"[T]o state a cause of action every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty." (*Ibid.*) "Since the duty of a

governmental agency can only be created by statute or 'enactment,' the statute or 'enactment' claimed to establish the duty must at the very least be identified." (*Ibid.*) "[A] public entity cannot be held liable for common law negligence." (*McCarty v. State of Cal. Dep't of Transp.* (2008) 164 Cal.App.4th 955, 977.)

Here, Defendant argues no statutory basis is identified in the FAC. It appears that Plaintiff alleges violations of Title 5 of the California Code of Regulations, adopted pursuant to Education Code section 89030, is the statutory basis for the claims. (See FAC ¶¶ 9, 17, 21-34.) Plaintiff then attempts to cite the specific statute for each allegation. These include accurate and timely maintenance of academic records (Title 5, §§ 40401-40405), proper faculty supervision, guidance, and evaluation of graduate culminating activities (Title 5, § 40510(a)-(b)), and (3) timely evaluation and recording of student academic work (Title 5, § 40403).

To the extent Plaintiff intends to rely on these code sections, the FAC fails to state a cause of action. The sections cited do not correspond to the FAC's allegations. Sections 40401 through 40405, for example, do not pertain to the timely maintenance of academic records. Section 40510 details requirements for the master's degree and does not provide a statute prescribing required faculty supervision, guidance, or evaluation of graduate culminating activities. Finally, section 40403 sets the minimum residency requirements for CSU students. As such, no statutory basis is identified permitting a claim for negligence against Defendant.

Government Code section 815.2. Government Code section 815.2, subdivision (a) states, "A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative."

Defendant argues that the allegations of vicarious liability also fail. Defendant notes that the FAC attempts to plead harm caused by the delay in conferring Plaintiff's master's degree, an act committed by CSUSB. Instead, for vicarious liability to apply, Plaintiff needs to identify an independent act, or tort, which would then make Defendant liable. Though this is a sound argument, the FAC identifies cumulative acts and not just the delayed conference of the master's

degree, which Defendant does not address. Nevertheless, as Plaintiff has failed to identify any specific and applicable statutory authority to support his cause of action for negligence, the Court SUSTAINS the demurrer as to the first cause of action for failing to state facts sufficient to constitute a cause of action.

Breach of Mandatory Duty. “Under the act, a public entity is not liable “[e]xcept as otherwise provided by statute.” One such statute is Government Code section 815.6, which provides, “Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” Thus, the government may be liable when (1) a mandatory duty is imposed by enactment, (2) the duty was designed to protect against the kind of injury allegedly suffered, and (3) breach of the duty proximately caused injury.” (*State Dept. of State Hospitals v. Superior Court* (2015) 61 Cal.4th 339, 348, citations omitted.)

Defendant argues Plaintiff has failed to identify a mandatory duty.

Under Government Code section 810.6, ““Enactment” means a constitutional provision, statute, charter provision, ordinance or regulation.” Government Code section 811.6 provides that:

““Regulation” means a rule, regulation, order or standard, having the force of law, adopted by an employee or agency of the United States pursuant to the federal Administrative Procedure Act (Chapter 5 (commencing with Section 500) of Title 5 of the United States Code) or as a regulation by an agency of the state pursuant to the Administrative Procedure Act (Chapter 3.5 (commencing with Section 11340) of Part 1 of Division 3 of Title 2).”

“In 1987, the Legislature added section 669.1 to the Evidence Code. It states: “A rule, policy, manual, or guideline of state or local government setting forth standards of conduct or guidelines for its employees in the conduct of their public employment shall not be considered a statute, ordinance, or regulation of that public entity within the meaning of Section 669, unless the rule, manual, policy, or guideline has been formally adopted as a statute, as an ordinance of a local governmental entity in this state empowered to adopt ordinances, or as a regulation by an

agency of the state pursuant to the Administrative Procedure Act (Chapter 3.5 (commencing with Section 11340) of Division 3 of Title 2 of the Government Code), or by an agency of the United States government pursuant to the federal Administrative Procedure Act (Chapter 5 (commencing with Section 5001) of Title 5 of the United States Code).” (*Strong v. State of California* (2011) 201 Cal.App.4th 1439, 1451–1452, disapproved on other grounds by *Leon v. County of Riverside* (2023) 14 Cal.5th 910.)

Defendant argues that overall the FAC’s allegations pertain to CSUSB’s policies and cannot form the basis for a Government Code section 815.6 mandatory duty breach claim because they do not meet the definition of “enactment” under Government Code section 810.6. Indeed, the FAC acknowledges that it relies on policies implemented by CSUSB. (See e.g., FAC at ¶¶ 22, 25, 28, and 31; see also RJN, Exh. F.)

The FAC attempts to identify mandatory duties and lists 1) advisory replacement (Title 5 CCR § 40510(a)), 2) grade submission deadline (§§ 40401-40405), 3) advancement to candidacy requirements (§ 40510), and 4) advisory guidance on project submission (§ 40510(b)).

As noted by Defendant, section 40510 sets master’s degree requirements and has nothing to do with advisory replacement; sections 40401 through 40405 have nothing to do with grade submission deadlines, and section 40510, subdivision (b) does not mandate advisory guidance. While advancement to candidacy is addressed in section 40510, that section provides candidate requirements and does not set for a mandatory duty. Further, the FAC is unclear with its allegations as to this “third mandatory duty” and merely alleges “Defendants advanced Plaintiff without enforcing this requirement.” (See Cal. Code Regs. Tit. 5, §§ 40401-40405, 40510.) Here, it appears Plaintiff relies on CSUSB policy rather than mandated duties that would give rise to a cause of action. Therefore, the Court SUSTAINS the demurrer as to the second cause of action for failing to state facts sufficient to constitute a cause of action.

In Opposition, Plaintiff states he identifies the mandatory duties, but he fails to address the fact that the sections he cites do not correspond to the allegations made in the FAC. Next, he cites *Barner v. Leeds* (2000) 24 Cal.4th 676, 685 (*Barner*) which does note a distinction between discretionary and ministerial acts, but it does not, as Plaintiff represents, state that post-

completion administrative tasks required after academic requirements are satisfied (such as entering the final grade, updating the record, and processing degree conferral) are ministerial and not discretionary acts. Then, confusingly, Plaintiff argues that *Barner* does not control this case.

In addition, Plaintiff argues that Defendant's policies implement a statewide duty and are thus sufficient. But Plaintiff cites no legal authority for this position. A point merely asserted without any authority for the proposition is deemed without foundation and requires no discussion. (See *Allen v. Smith* (2002) 94 Cal.App.4th 1270, 1281.)

In sum, the Court SUSTAINS the demurrer as to both causes of action for failing to state facts sufficient to constitute a cause of action. Though, Defendant requests leave to amend be denied, the Court will exercise its discretion in allowing Plaintiff one more opportunity to cure all the legal deficiencies raised by the Demurrer. Therefore, Plaintiff shall have 20 days leave to amend.

STRIKE.

In light of the Court's ruling on the demurrer, the Court finds the motion to strike MOOT at this time.

RULING

For all the reasons stated above, the Court SUSTAINS the demurrer with 20 days leave to amend and finds the Motion to Strike MOOT.